

***HEARING ON MOTION IN RE: TO CONSOLIDATE**

FILED BY: 1125 SIR FRANCIS DRAKE BOULEVARD OPERATING CO., LLC

TENTATIVE RULING:

This is one of two actions filed concerning defendants' care for a now-deceased patient. This is the first-filed, and the second is pending in Marin County. Defendants 1125 Sir Francis Drake Boulevard and Vibra Healthcare move to transfer the Marin action here and consolidate it with the existing Contra Costa action. The motion is unopposed, and it appears to be called for. (Indeed, the Court observes that if they remained separate, it is likely that the first case to come to judgment could operate as res judicata as to the other one.)

However, as a matter of caution, the Court requests **counsel to appear** (Zoom okay) to confirm whether there are any additional parties involved, and whether the Marin court has been apprised of this proposal.

8. 9:00 AM CASE NUMBER: C24-01973
CASE NAME: DAVID WONG VS. JAFFE AND ASHER LLP
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT
FILED BY: JAFFE AND ASHER LLP

TENTATIVE RULING:

Defendant Jaffe & Asher LLP's Demurrer to Plaintiff David Wong's Second Amended Complaint is **overruled**.

Background

Plaintiff David Wong filed this action in July 2024. The operative pleading is the Second Amended Complaint (SAC), filed October 15, 2025. The SAC asserts a cause of action against Jaffe & Asher LLP (J&A) for false imprisonment arising out of a service-of-process incident on March 3, 2024.

The court has previously sustained demurrers to earlier iterations of the false imprisonment claim. J&A demurred to the original complaint, and the court sustained that demurrer on February 10, 2025, finding that plaintiff had alleged only that his car was blocked by the process server's vehicle and had not alleged facts sufficient to show he was physically restrained or that he believed, based on words or conduct, that he would not be allowed to leave. Plaintiff filed the First Amended Complaint on February 24, 2025. J&A demurred to the FAC and the court sustained the demurrer with leave to amend.

Plaintiff filed the SAC on October 15, 2025. J&A now demurs to the false imprisonment cause of action on the ground that the SAC fails to state facts sufficient to constitute a cause of action against it.

J&A makes two arguments. First, J&A argues that the SAC does not allege false imprisonment at all. J&A argues that the new allegations in the SAC regarding physical blocking of the car doors and a verbal instruction to stay are inconsistent with prior pleadings and should be disregarded as sham. J&A further argues that even accepting those allegations, plaintiff was free to leave on foot and the

process servers neither physically restrained him nor threatened harm if he left.

Second, J&A contends that even if a false imprisonment occurred, J&A cannot be held liable for the Clausens' conduct. J&A argues that plaintiff's allegations connecting it to the process servers sound in either agency or aiding and abetting, and that under either theory they fail. As to agency, J&A argues that plaintiff does not allege that J&A controlled the manner and means by which the Clausens carried out service, as opposed to merely directing the desired result. As to aiding and abetting, J&A argues that plaintiff does not allege facts showing J&A knew a tort was being or would be committed and acted with intent to facilitate it. J&A also argues that all agency and intent allegations are pleaded on information and belief without the factual foundation required by *Gomes v. Countrywide Home Loans, Inc.* (2011) 192 Cal.App.4th 1149.

J&A requests that the demurrer be sustained without leave to amend on the ground that plaintiff has had three opportunities to plead and remains unable to state a viable claim.

Plaintiff opposes the demurrer on two grounds. First, he argues the SAC states a claim for false imprisonment against the process servers by alleging facts beyond a blocked driveway – specifically, that both of his car doors were physically blocked by the Clausens' bodies, that one of the Clausens instructed plaintiff to stay in the car, and that plaintiff was not free to leave until they departed. Plaintiff argues these allegations directly address the deficiencies identified in prior rulings and that his prior references to driving to Safeway were not an admission that he could have left on foot on March 3, 2024.

Second, plaintiff argues the SAC sufficiently connects J&A to the process servers' conduct through allegations that J&A directly hired the Clausens, authorized a stakeout, deployed two process servers instead of one, imposed deadline pressure, declined to rehire process servers who had previously failed, and instructed that plaintiff be photographed at the time of service, etc. Plaintiff asserts these are ultimate facts rather than speculation regarding J&A's involvement in the service operation, and that the communications underlying them are within defendants' exclusive knowledge, making evidentiary-level pleading inappropriate before discovery has taken place.

In the alternative, plaintiff requests leave to amend the SAC to add the basis for his information and belief allegations.

Legal Standard

A demurrer challenges the legal sufficiency of the complaint on the ground it fails to state facts sufficient to constitute a cause of action. (Code Civ. Proc. § 430.10(e); *Rakestraw v. California Physicians' Service* (2000) 81 Cal.App.4th 39, 42-43.) The challenge is limited to the "four corners" of the pleading or matters outside the pleading which are judicially noticeable under Evidence Code §§ 451 or 452.

On demurrer, a complaint must be liberally construed. (Code Civ. Proc, § 452; *Stevens v. Superior Court* (1999) 75 Cal.App.4th 594, 601.) All material facts properly pleaded, and reasonable inferences, must be accepted as true. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-67.) Although California courts take a liberal view of inartfully drawn complaints, it remains essential that a complaint set forth the actionable facts relied upon with sufficient precision to inform the defendant of what plaintiff is complaining, and what remedies are being sought. (*Leek v. Cooper* (2011) 194

Cal.App.4th 399, 413.)

Analysis

(1) The Sufficiency of the False Imprisonment Claim

False imprisonment has three elements: (1) the nonconsensual, intentional confinement of a person, (2) without lawful privilege, and (3) for an appreciable period of time, however brief. (*Fermino v. Fedco, Inc.* (1994) 7 Cal.4th 701, 715-16; *Easton v. Sutter Coast Hosp.* (2000) 80 Cal.App.4th 485, 496; *Lyons v. Fire Ins. Exch.* (2008) 161 Cal.App.4th 880, 888; *Shoyoye v. County of Los Angeles* (2012) 203 Cal.App.4th 947, 962; *Bocanegra v. Jakubowski* (2015) 241 Cal.App.4th 848, 855; CACI No. 1400 [restraint may be accomplished by physical barriers, force, threats of force, menace, fraud, deceit, or unreasonable duress, italics added].)

Before addressing the sufficiency of the confinement allegations, the court addresses J&A's argument that the SAC is a sham pleading and should be disregarded.

Under the sham pleading doctrine, a plaintiff may not avoid demurrer by pleading facts in an amended complaint that contradict facts pleaded in a prior complaint, or by suppressing facts which prove the pleaded facts false. (*Cantu v. Resolution Trust Corp.* (1992) 4 Cal.App.4th 857, 877.) The sham pleading doctrine is an exception to the general rule that the court must assume the truth of the factual allegations of the complaint. (*Owens v. Kings Supermarket* (1988) 198 Cal.App.3d 379, 383; *Foster v. Sexton* (2021) 61 Cal.App.5th 998, 1019.) Under this exception, if a party amends a pleading to omit or alter facts that rendered the pleading vulnerable to attack, the policy against sham pleading requires the plaintiff to explain the inconsistency. (*Owens, id.* at 384.) If the plaintiff fails to provide a satisfactory explanation, the court may disregard the inconsistent allegations and read into the amended complaint the allegations of the superseded complaint. (*Ibid.*)

J&A argues that the SAC's allegations that the Clausens physically blocked both car doors with their bodies and that one of them verbally instructed plaintiff to stay in the car are fabricated additions that would have appeared in the FAC from the outset if they were true. The sham pleading doctrine targets contradictions, not additions. The FAC alleged that the process server's vehicle blocked plaintiff's car and that plaintiff was trying to leave by car. It did not allege that the Clausens positioned themselves on both sides of plaintiff's car or that either of them verbally directed him to stay. The SAC adds those allegations; it does not contradict the FAC's account of events. Plaintiff reasonably explains that the new allegations are a direct response to the deficiency the prior tentative ruling identified, namely that the FAC alleged only a blocked car and did not allege physical restraint or words or conduct showing plaintiff would not be allowed to leave.

J&A also argues that the SAC's new allegation that plaintiff could not open his car door to exit on foot without striking the Clausens is irreconcilably inconsistent with the FAC's Safeway allegations. The court disagrees. The FAC explained why plaintiff was taking a car that day. It did not affirmatively allege that exiting on foot was physically available to him given that Clausens alleged conduct.

The SAC alleges sufficient facts to support the elements of false imprisonment. As to element one, the SAC alleges that on March 3, 2024, defendants Ernest and Vicki Clausen intentionally blocked

plaintiff's driver and passenger side car doors with their bodies while their SUV obstructed the driveway exit, and one of them instructed plaintiff to stay where he was. (SAC ¶¶ 53, 56, 57, 63, 66, 67, 73.) Plaintiff did not consent to being restrained. (SAC ¶ 71.) As to element two, plaintiff alleges the Clausens had no lawful privilege to restrain him or block his car doors. (SAC ¶ 74.) As to element three, plaintiff was compelled to remain in his car until the Clausens departed. (SAC ¶¶ 59, 72.)

Based on the foregoing, J&A's demurrer on the ground that the SAC fails to state facts sufficient to constitute a cause of action for false imprisonment is overruled as to the conduct of the process servers.

(2) Whether the SAC Adequately Pleads J&A's Liability for the Conduct of the Process Servers

Civil Code section 2338 codifies the respondeat superior doctrine as follows: "Unless required by or under the authority of law to employ that particular agent, a principal is responsible to third persons for the negligence of his agent in the transaction of the business of the agency, including wrongful acts committed by such agent in and as a part of the transaction of such business, and for his willful omission to fulfill the obligations of the principal." Section 2338 "is not limited to employer and employee but speaks more broadly of agent and principal; it makes the principal liable for negligent and 'wrongful' acts committed by the agent 'in and as part of the transaction of such [agency] business.'" (*Lisa M. v. Henry Mayo Newhall Memorial Hospital* (1995) 12 Cal.4th 291, 296, fn. 2.)

"An allegation of agency is an allegation of ultimate fact that must be accepted as true for purposes of ruling on a demurrer." (*Dones v. Life Insurance Company of North America* (2020) 55 Cal.App.5th 665, 685.) A plaintiff is not required to allege facts demonstrating the principal's control over its agent. (*Ibid.*) "The general allegation of agency is one of ultimate fact, sufficient against a demurrer." (*Kiseskey v. Carpenters' Trust for So. Cal.* (1983) 144 Cal.App.3d 222, 230; accord, *Skopp v. Weaver* (1976) 16 Cal.3d 432, 437; *Barsegian v. Kessler & Kessler* (2013) 215 Cal.App.4th 446, 451; *Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858, 886; *Lujan v. Gordon* (1977) 70 Cal.App.3d 260, 262.)

Plaintiff alleges that J&A hired the Clausens to serve him. (SAC ¶ 83.) J&A concedes as much in its own brief, stating that "this case is nothing more than a law firm hiring a process server to serve a party." (MPA,13:19-22.) Thus, the agency relationship created by that hire is not disputed. The SAC further alleges that the defendants were acting as agents, employees, and representatives of one another in the course and scope of that relationship with the knowledge and consent of their principals. (SAC ¶ 11.)

J&A argues the SAC is defective because plaintiff has not alleged facts demonstrating that J&A controlled the manner and means by which the Clausens carried out service. The cases J&A relies on as holding that a plaintiff must allege facts demonstrating the principal's control over its agent (*Patterson v. Domino's Pizza, LLC* (2014) 60 Cal.4th 474 and *Stevens v. Roman Catholic Bishop of Fresno* (1975) 49 Cal.App.3d 877) do not support that proposition. Both cases discuss requirements for proof of an agency relationship. Neither says anything about pleading requirements to withstand demurrer.

J&A also argues that plaintiff's allegations are pleaded on information and belief without the factual

foundation required by the cases. The court need not reach that argument. An agency relationship between J&A and the Clausens is sufficiently alleged and confirmed by J&A's own concession that it hired the Clausens to effect service, and a plaintiff is not required to allege facts demonstrating the principal's control over its agent. (See, e.g., *Dones*, p. 685.)

Because the agency relationship is pleaded, the court need not reach the sufficiency of plaintiff's aiding and abetting allegations.

Disposition

Based on the foregoing, the demurrer is **overruled**. J&A shall have 30 days to answer the SAC.

9. 9:00 AM CASE NUMBER: C24-01973
CASE NAME: DAVID WONG VS. JAFFE AND ASHER LLP
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT
FILED BY: CHARLES SCHWAB & CO. INC.
TENTATIVE RULING:

Defendant Charles Schwab & Company, Inc.'s Demurrer to Plaintiff David Wong's Second Amended Complaint is **sustained with leave to amend**. As explained in Line 8 above, the Court concludes that Wong's SAC allegations are sufficient to allege that the Clausens committed false imprisonment. However, the Court concludes that the allegations are insufficient to state a claim that Schwab (unlike J&A) can be held responsible for any torts of the process servers.

Background

Plaintiff David Wong filed this action in July 2024. The operative pleading is the Second Amended Complaint (SAC), filed October 15, 2025. The SAC asserts a single remaining cause of action against Charles Schwab & Company, Inc. for false imprisonment arising out of a service-of-process incident on March 3, 2024.

The court has previously sustained demurrers to earlier iterations of the false imprisonment claim. J&A demurred to the original complaint, and the court sustained that demurrer on February 10, 2025, finding that plaintiff had alleged only that his car was blocked by the process server's vehicle and had not alleged facts sufficient to show he was physically restrained or that he believed, based on words or conduct, that he would not be allowed to leave. Plaintiff filed the First Amended Complaint on February 24, 2025. J&A demurred to the FAC and the court sustained the demurrer with leave to amend.

Plaintiff filed the SAC on October 15, 2025. Schwab now demurs to the false imprisonment cause of action on the ground that the SAC fails to state facts sufficient to constitute a cause of action against it. Schwab advances two principal arguments.

First, Schwab contends the SAC does not allege a false imprisonment. Schwab argues that new allegations in the SAC regarding physical blocking of the car doors and a verbal instruction to stay